

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

**SENATE CONCURRENT RESOLUTION NO. 4024
(Senators Mathern, Hogue, Bekkedahl)
(Representatives Koppelman, Lefor)**

A concurrent resolution directing the Legislative Management to consider studying using dedicated funds in the Capitol building fund to build a legislative office building.

WHEREAS, the Capitol building fund was created at statehood through a grant of 50,000 acres of land to the state for the purpose of financing construction of public buildings for legislative, executive, and judicial use and, in 1957, Congress expanded the purpose of the fund to allow the fund to be used for construction, renovation, and other improvements of public buildings at the Capitol; and

WHEREAS, the 1967 Legislative Assembly considered the need to improve legislative committee rooms and provide office space for committee chairmen, legislative study lounges, and Legislative Council offices; and

WHEREAS, the 1967 Legislative Assembly adopted legislation directing the Capitol building fund be dedicated and reserved for the exclusive purpose of the construction of an addition to the legislative wing; and

WHEREAS, since 1967, money in the Capitol building fund has been used for a variety of purposes including the payment of special assessments and the construction and maintenance of the Governor's residence; and

WHEREAS, a significant portion of the land granted to the state and the assets of the fund continue to contribute to the balance of the Capitol building fund, which is in excess of \$5,000,000, despite appropriations from the fund for other purposes totaling nearly \$13,000,000 over the last 3 bienniums; and

WHEREAS, many legislative meeting rooms are too small to accommodate the public, lack secondary or emergency exits, and are not designed to function with today's technology; and

WHEREAS, the legislative parking lot frequently is in need of repair, and during legislative sessions often is covered with snow and ice causing unsafe conditions; and

WHEREAS, our Capitol is one of the few in the country in which legislators have no dedicated place to work or private space to meet with constituents; and

WHEREAS, long-term Capitol facility plans have explored the option of building a parking structure on the west side of the legislative wing rather than continuing to repair the legislative parking lot; and

WHEREAS, construction of a parking structure also would present an opportunity to include above the parking structure space for modern committee rooms, legislative offices and meeting space, and office space for legislative staff; and

WHEREAS, construction of a legislative office building would allow executive branch agencies that are leasing office space off the Capitol grounds to move into the Capitol, saving money on leased space and providing greater access to the public; and

WHEREAS, as the Capitol approaches its 100th anniversary, it is vital for the Legislative Assembly to address the future needs of the legislative branch and provide future legislators with the tools necessary to retain the Legislative Assembly's constitutional role as a coequal branch of government;

NOW, THEREFORE, BE IT RESOLVED BY THE SENATE OF NORTH DAKOTA, THE HOUSE OF REPRESENTATIVES CONCURRING THEREIN:

That the Legislative Management consider studying using dedicated funds in the Capitol building fund to build a legislative office building; and

BE IT FURTHER RESOLVED, that the Legislative Management report its finding and recommendations, together with any legislation required to implement the recommendations to the Seventieth Legislative Assembly.

President of the Senate

Speaker of the House

Secretary of the Senate

Chief Clerk of the House

Filed in this office this _____ day of _____, 2025,
at _____ o'clock _____ M.

Secretary of State